



File No.: RR/00065/2023

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by CONECTA5 TELECINCO, S.A.U. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated December 27, 2022, and based on the following FACTS

FIRST: On December 27, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in file PS/00191/2022, by virtue of which a fine of 50,000.00 euros (fifty thousand euros) was imposed on CONECTA5 TELECINCO, S.A.U. with NIF A82432279, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

Furthermore, the resolution confirmed the following provisional measures imposed on CONECTA5 TELECINCO, S.A.U.:

- Removal or distortion of the victim's voice from its web addresses, preventing, to the extent that the state of technology allows, the re-uploading or reloading of exact copies or replicas by the same or other users.
 - Removal or modification of the content in such a way that it makes access and disposition of the original by third parties impossible, but guarantees its preservation, for the purpose of safeguarding the evidence that may be necessary during the course of the police or administrative investigation or the judicial process that may be instructed.
- Said resolution, which was notified to the appellant on the date, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (LOPDGDD), and subsidiarily in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00191/2022, the following were recorded:

First: On ***DATE.1, Mr. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection (hereinafter, AEPD) reporting that several media outlets had published on their websites the audio of the statement made before the judge by a victim of a multiple rape, to illustrate the news related to the trial in a case that was very public, providing links to the news published on the websites of the claimed media.

On ***DATE.2, a new document was received from the claimant stating that they had been able to verify that some media had removed that information, although they accompanied publications made by some media on Twitter where it was still available.

Second: On ***DATE.3, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

Third: The General Sub-Directorate for Data Inspection, in the exercise of its investigative activities, found a publication by the appellant where the victim's voice could be heard without distortion at the following address:

***URL.1

Fourth: On ***DATE.4, a precautionary measure of urgent removal of content or distortion of the victim's voice was notified to the appellant in such a way that it became unidentifiable at the web addresses from which this content was accessible, specifically from:

***URL.1

Fifth: On ***DATE.5, a document was received by this Agency from this entity informing that it had proceeded to give immediate and full compliance with the requirements made.

Sixth: It is proven in the report of prior investigative actions dated January 24, 2022, that what was stated by the claimed party in its document of ***DATE.5 was verified, that is, it was confirmed that the news was no longer available at this address:

***URL.1

THIRD: The appellant submitted on February 6, 2023, to this Spanish Agency for Data Protection, a reconsideration appeal, basing it fundamentally on the following points:

- Legitimate trust in the judiciary.

The appellant states that there was no infringement "by application of the principle of legitimate trust in the actions of public authorities, in this case the justice system, as it limited itself to informing about facts while respecting the measures for the protection of the identity of a person adopted by the Court that was instructing the case."

It continues by indicating that the sanctioning procedure "was initiated because the Criminal Court in charge of the investigation made available to CONECTA 5 the recording of the statement of the affected party without applying any voice filter and without making any mention or express warning about the need to apply it, contravening the 2020 Communication Protocol of Justice approved by the General Council of the Judiciary."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/14

It is considered "key to take into account that the publication of the victim's voice recording without distortion on a website was the result of the concurrence of the following factors: (i) the urgency in communication due to public interest and the significance of the process; (ii) that the recording was distributed by the Court itself; and, (iii) that there was no express warning from the Court's communication offices regarding how to publish the provided information."

It is noted that "the principle of legitimate expectation constitutes a guiding principle of the actions of Public Administrations that expresses citizens' trust that the actions of public administrations cannot be arbitrarily altered and provides the framework for individuals' actions in their relationships with public administrative powers, characterized by the notes of predictability and legal certainty."

In this sense, it was the very act of the Court to freely disseminate and without any masking the voice of the victim that generated in CONECTA5 the trust that it was acting correctly, and therefore, the belief that its conduct was also correct.

Likewise, regarding the treatment of the distributed information, clear instructions had always been received from the communication offices of the Courts, but not in this case.

(...)

Despite the above, the breach of the generated trust has resulted in damages to CONECTA5 that do not correspond to it, such as the initiation of the present procedure and the sanction imposed by the AEPD."

- Consideration of the voice as personal data. The identification of the victim is not indisputable.

The appellant understands that "it is controversial whether the voice, as such, is a personal data through which a person can be identified."

It is pointed out that "not every individual and personal attribute is a piece of personal data, but only those that identify or do not allow the identification of a specific person."

It continues to indicate that "for an identifier to become a protected data, as in this case, it is necessary that this identification be indisputable, something that the AEPD has not justified in any way."

To subsequently state that if the AEPD considers that the identification of the person can occur through the voice emitted on television and the concurrence of additional information, "then the determining fact may not be the emission of the voice in isolation, needing to prove in that case that there exists the unlawful element since the identification of the victim would not derive solely from the voice but from the accumulation of a multitude of data provided by other means."

C/ Jorge Juan, 6

www.aepd.es

4/14

It concludes by denying "that the voice can be considered as an identifying element of the person (and even more so its retransmission) and, therefore, considered as personal data, so that the recording disseminated by CONECTA5 on its website in any way can be sufficient to singularize the victim to the point of identifying her."

- "Abuse of power in the use of preliminary actions."

The appellant argues that "the AEPD has replaced the intended purpose for the sanctioning procedure with its own (and more limited) purpose of the preliminary investigative actions.

This would entail the existence of a possible objective abuse of power defect, which would affect the preliminary investigative actions agreed upon by the AEPD and would carry with it:

- a defect of annulability in them; and, consequently,
- a defect of nullity in the sanctioning procedure, for lacking the necessary elements of charge, as the annulment of what was acted upon in the preliminary actions proceeds."

It is pointed out that "the preliminary investigative actions do not aim to indisputably establish the facts they concern, but merely to gather a series of indicative elements that, probably, some apparently typical facts have occurred and it is possible to identify their author."

It is stated that in the present case "no action was taken in the administrative route, beyond the drafting and communication to this party of the Agreement of Initiation and the Proposal for Resolution, and all investigative activity, including a request for the removal of content from certain websites, was carried out before the initiation of the file. Therefore, there was no correct use, by the Administration, of the different phases of the administrative procedure," invoking for this purpose the Judgment of the Supreme Court of December 26, 2007.

For this reason, it is considered that the "preliminary actions concealed a genuine instructive activity, distancing the power from the purpose for which it was granted (to gather evidence that would allow, without delay, to open the sanctioning procedure)."

- Disproportion of the imposed sanction.

It is considered that the circumstance of intent or negligence does not concur because the audio was emitted as it was disseminated by the Court itself, so that if there were negligence, it would be on the part of that Court.

On the other hand, it is stated that none of the following mitigating factors that are understood to be applicable to the case have been considered:

- The absence of prior infringement records.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/14

- The degree of cooperation with the AEPD in order to remedy the alleged infringement and mitigate the adverse effects of the infringement, as it immediately adopted a provisional measure, proceeded to remove the news item and fully complied with the requirements made.

- The adherence to the Digital Pact for the protection of individuals.

- The unique and isolated nature of the alleged infringement.

LEGAL GROUNDS

I

Jurisdiction

The Director of the Spanish Agency for Data Protection is competent to resolve the present appeal, in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of the LOPDGDD.

II

Response to the allegation regarding legitimate trust in the judiciary

The appellant states that the sanctioning procedure "was initiated because the Criminal Court responsible for the investigation made available to CONECTA 5 the recording of the affected party's statement without applying any voice filter and without making any express mention or warning about the need to apply it, contravening the 2020 Justice Communication Protocol approved by the General Council of the Judiciary."

Such allegation was already made by the appellant during the processing of the sanctioning procedure, having been analyzed and dismissed in Legal Ground IV of the contested resolution, which indicates that the treatment subject to the procedure is the dissemination of the victim without distortion that has been carried out by the appellant, "not entering into the scope of this other treatments, such as the sending made by the Court to the media of the material disseminated by the claimed party."

It should be noted, as indicated in the aforementioned legal ground, that the appellant is responsible for the treatment, "as it has the power to do so by having decisive influence over it. Thus, the purpose is informative and the means encompass the decision-making power from the way in which the information is distributed or made available to the public, to its content. The media, for the purposes of fulfilling its purpose, once it has gathered all the necessary information in the exercise of its journalistic work, decides what information to provide and through which medium, in what terms and with what personal data."

Therefore, such legal ground indicates that "The transfer of the video of the hearing with the undistorted voice of the victim by the Court to the media is another data treatment different from the one being analyzed. Therefore, the fact that the origin of the information was the Court is not sufficient to exempt the claimed party from its responsibility, because what is being judged is not the provision of information by the Court to the media, but the treatment for which the claimed party is responsible, such as the dissemination of personal data like the voice of the victim.

As for the information reaching the media, it, as the responsible party for the treatment, is responsible for complying with data protection regulations, without being able to justify non-compliance on the grounds that the Court sent the information in that manner, assuming that such provision allows it to publish it without adhering to the prescriptions of the GDPR and the LOPDGDD."

The appellant considers it "key to take into account that the publication of the recording of the victim's voice without distortion on a website was the result of the concurrence of the following factors: (i) the urgency in communication due to public interest and the significance of the process; (ii) that it was the Court itself that distributed the recording; and, (iii) that there was no express warning from the Court's communication offices on how to publish the provided information."

It has already been indicated that non-compliance with data protection regulations cannot be justified by the fact that the Court sent the information in that manner.

In the same vein, the appellant, as the responsible party for the treatment, is responsible for complying with data protection regulations, without being able to justify non-compliance on the grounds of urgency in reporting the news.

Regarding the statement that the Court's communication offices did not make any express warning about how to publish the provided information, the aforementioned Legal Ground IV of the contested resolution states that "the communication offices of the courts cannot issue mandates to the media, but rather warnings and recommendations.

(...)

And if one follows the interpretation defended by the claimed party, the treatment carried out by the media would be totally subordinated or conditioned by the indications received from the judicial body, which is not the case."

The appellant states that "the principle of legitimate trust constitutes a guiding principle of the actions of Public Administrations that expresses citizens' trust that the actions of public administrations cannot be altered arbitrarily and provides the framework for individuals' actions in their relations with public administrative powers, characterized by the notes of predictability and legal certainty.

In this sense, it was the very act of the Court to freely and without any masking disseminate the voice of the victim that generated in CONECTA5 the trust that it was acting correctly, and therefore, the belief that its conduct was in turn correct.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
7/14

Likewise, regarding the handling of distributed information, clear instructions had always been received from the communication offices of the Courts, but not in this case.

(...)

Despite the above, the breach of the trust generated has resulted in damages to CONECTA5 that do not correspond to it, such as the initiation of the present procedure and the sanction imposed by the AEPD.”

It is in Article 3.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, where reference is made to the principle of legitimate trust, a provision that states that “Public Administrations serve the general interests objectively and act in accordance with the principles of efficiency, hierarchy, decentralization, deconcentration, and coordination, fully subject to the Constitution, the Law, and the Law.”

They must respect the following principles in their actions and relationships:

(...)

e) Good faith, legitimate trust, and institutional loyalty.”

The principle of legitimate trust can be understood as the trust of citizens in the future actions of Public Administrations based on their past actions, considering the expectations they generate, while always safeguarding the principle of legality, so that this principle cannot be invoked to justify situations contrary to the norm.

This is derived from the Judgment of the Supreme Court of February 9, 2004 (rec. 4130/2001): “The principle of protection of legitimate trust, related to the more traditional principles in our legal system of legal certainty and good faith in the relationships between the Administration and individuals, entails, according to the doctrine of the Court of Justice of the European Communities and the jurisprudence of this Chamber, that the public authority cannot adopt measures that are contrary to the hope induced by the reasonable stability in its decisions, and based on which individuals have made certain decisions. (...) In the same sense, it must be taken into account that ‘the principle of protection of the citizen's legitimate trust’ in the actions of the Administration does not apply to cases of any type of subjective psychological conviction in the individual, but rather when such ‘trust’ is based on signs or external facts produced by the Administration that are sufficiently conclusive to induce the individual to trust in the ‘appearance of legality’ that the administrative action through specific acts reveals” (Cf. SSTs November 15, 1999, June 4, 2001, and April 15, 2002, among others).” (the underlining is ours). Meanwhile, the Judgment of the Supreme Court of February 1, 1999 (rec. 5475/1995) indicates that “this principle cannot be invoked to create, maintain, or extend, in the field of Public Law, situations contrary to the legal order.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
8/14

legal, or when the preceding act results in a contradiction with the purpose or interest protected by a legal norm that, by its nature, is not susceptible to supporting discretionary conduct by the Administration that implies the recognition of rights and/or obligations arising from its own acts. In other words, the invoked doctrine of “own acts” without the limitation just exposed could introduce into the realm of public law the principle of autonomy of will as an organizing method for matters regulated by imperative norms, in which the public interest safeguarded by the principle of legality prevails; a principle that would be violated if an action by the Administration contrary to the legal order were validated solely because it has been decided by the Administration or because it responds to a precedent set by it.

One thing is the irrevocability of one's own acts declaring rights outside the review channels

established by law (arts. 109 and 110 of the LPA of 1958, 102 and 103 of the Law on the Legal Regime of Public Administrations and Common Administrative Procedure, Law 30/1992, amended by Law 4/1999), and another is the respect for the legitimate trust generated by one's own action, which must necessarily project into the realm of discretion or autonomy, not into the regulated aspects or normative requirements against which, in Administrative Law, what has been resolved in an act or in a precedent that was contrary to those cannot prevail. In other words, it cannot be said that the trust placed in an act or precedent that is contrary to an imperative norm is legitimate." (the underlining is ours).

Furthermore, as we have mentioned, that hope or trust generated must be "legitimate" and based on previous external acts whose meaning is undoubtedly contrary to what has been agreed upon subsequently, without including in this principle of legitimate trust a mere psychological conviction of the individual.

We must emphasize that the principle of legitimate trust operates in practice between a specific Public Administration and an individual, within the framework of the existing legal relationship between them. This means that the action taken by another Public Administration, different from the acting one, does not bind the latter - each exercises its own competencies - nor can it, therefore, generate legitimate trust for the individual.

The AEPD has not carried out any action that has allowed the appellant to conclude the suitability of its action. It cannot provide any pronouncement or action from this Agency that would lead it to think that it could disseminate the voice of the victim without distortion, simply because there is no action in that sense.

Moreover, it is worth reiterating what has been previously expressed regarding the prevalence of the principle of legality, which prevents invoking legitimate trust to save situations contrary to the norm, especially when we are talking about the regulated powers of the AEPD as set out in Article 58 of the GDPR, such as the sanctioning power.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
9/14

Therefore, the requirements stated in the Supreme Court Judgment of February 22, 2016 (rec. 4048/2013) to determine the existence of a legitimate trust are not met:

1. "that it is based on undeniable and external signs." Regardless of whether these undeniable and external signs, as already indicated, must be from the AEPD and, in this case, do not exist, it must be remembered that the court carries out a different treatment that is not the subject of this sanctioning file. This implies that what the media, in this case the appealing party, subsequently does with the information derived from the provision of the institutional signal is not the responsibility of the Court.
 2. "that the hopes generated in the administered must be legitimate." As indicated in Legal Basis XI of the contested resolution, this is not about denying the exercise of the Fundamental Right to Freedom of Information or giving precedence to one fundamental right over another, having to choose which carries more weight in a specific case, but rather about finding a balance between both to achieve the Fundamental Right to Freedom of Information without undermining the Fundamental Right to the Protection of Personal Data. "That is, the freedom of information of the media is not questioned but the weighting with the right to data protection based on the proportionality and necessity of publishing the specific personal data of the voice. Such a situation could have been resolved by using technical procedures to prevent the recognition of the voice, such as, for example, the distortion of the victim's voice or the transcription of the account of the multiple rape, both security measures applied, depending on the case, ordinarily by the media." (Legal Basis XI of the contested resolution)
- In the present case, the claimed party proceeded, following the request made by the AEPD on ***DATE.4, to remove the news from the link ***URL.1. However, it could have opted, as indicated in the aforementioned request, to have distorted the victim's voice, without prejudice to which the information would have continued to be available and would still be provided in all its breadth, which shows that to provide this specific information it was not necessary, in the terms of art. 5.1.c) of the

GDPR, to disseminate the victim's voice.

3. "that the final conduct of the Administration is contradictory to previous acts, is surprising and incoherent." It must be emphasized that the contradictory final conduct must be from the same body, which does not happen in the present case since what the appealing party intends is to contrast the action of the jurisdictional body with that of the AEPD, not two contradictory actions of the Agency.

IV

Response to the allegation regarding the consideration of the voice as personal data

In relation to the statements made by the appealing party regarding the consideration of the voice as personal data, reiterating basically

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/14

In the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in Legal Basis II of the resolution now being appealed.

The voice of any person is a personal data and identifies or makes them uniquely identifiable, regardless of any additional data that may be present in the case. Thus, the publication of the personal data of the victim's voice alone and without distortion placed them at a certain risk of being identified by individuals who were unaware of their status as a victim.

It is irrelevant whether someone has identified the victim through their voice or not, because the fact is that there was a risk that someone could identify them.

V

Response to the allegation regarding the abuse of power in the use of preliminary actions

The appealing party argues that "the AEPD has replaced the purpose intended for the sanctioning procedure with the own (and more limited) purpose of the preliminary investigative actions," since "the preliminary investigative actions do not aim to unequivocally establish the facts in question, but merely to gather a series of indicative elements that suggest that, probably, some apparently typical facts have occurred and it is possible to identify their author," and therefore understands that the appealed act incurs in an abuse of power.

Article 55.2 of the LPACAP establishes that "In the case of sanctioning procedures, the preliminary actions shall be aimed at determining, as precisely as possible, the facts that may motivate the initiation of the procedure, the identification of the person or persons who may be held responsible, and the relevant circumstances that apply to both."

For its part, Article 67.1 of the LOPDGDD states that "Before the adoption of the agreement to initiate the procedure, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure."

In the present case, as noted in Background III of the appealed resolution, the investigative actions consisted of:

- The search for publications, in addition to those initially reported by the complaining party, where the voice of the victim could be heard without distortion. In such a search, the following publication from the appealing party was found:

***URL.1

- In the request, dated ***DATE.4, directed to the appealing party for urgent precautionary measures for the removal of content or distortion of the victim's voice in such a way that it became unidentifiable on the web addresses from which it was accessible.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/14

this content, and specifically the previously mentioned web address. Such action was taken under the protection of Article 69.1 of the LOPDGDD:

“During the preliminary investigation actions or when a procedure for the exercise of the sanctioning power has been initiated, the Spanish Agency for Data Protection may reasonably agree on the necessary and proportionate provisional measures to safeguard the fundamental right to data protection.”

- The verification of what was stated by the appellant in their writing dated ***DATE.6, that is, it was confirmed that the news was no longer available at the aforementioned web address.

In light of the previously transcribed provisions, it is not understood why the appellant considers that the described investigative action supplants the instructive action, since:

- The action taken during the investigation phase is the minimum necessary to determine, in the sense indicated by Article 55.2 of the LPACAP, whether there is a fact that could justify the initiation of the sanctioning procedure and who is responsible; in this case, to determine the existence of the publication of the victim's voice without distortion at the web address ***URL.1 by the appellant.

- The appellant does not indicate what specific action exceeds those typical of the investigation phase. The Judgment of the Supreme Court of November 24, 2014 (not the STS of December 26, 2007, as stated by the appellant), expresses the following:

“As for the objective dimension, we stated in the judgment of December 26, 2007, previously cited, that the distortion of those preliminary or preparatory actions would be rejected when they cease to serve the purpose that truly justifies them, that is, to gather the initial data and indications that serve to judge the relevance of proceeding with the sanctioning file, and they do not become deformed into a surreptitious alternative to the latter. For this ground for cassation to succeed, it would have been necessary for the appellant to explain (which they do not) what the specific distortion of the procedure consisted of, which cannot simply be identified with the excessive duration of the reserved information. The latter is not, by itself, an element that transforms the nature of the preliminary actions, nor can it be identified with the distortion referred to in that judgment.” (the underlining is ours).

In this case, the appellant merely states that “no action was taken in the administrative route, beyond the drafting and communication to this party of the Agreement of Initiation and the Proposal for Resolution, and all investigative activity, including a request for the removal of content from certain websites, was carried out before the initiation of the file.”

It must be insisted that this last allegation of the appellant is not understood, since the notifications of the agreement to initiate the sanctioning procedure and the proposal for resolution are something more than a mere “communication,” as it is the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/14

the manner in which the alleged responsible parties for an infringement can present allegations against the imputation of an alleged infringement attributed to them, as well as submit documents and request evidence to support their defense. In the present case, although the appellant has made allegations regarding both the initiation agreement and the proposed resolution, they have not requested the practice of any evidence. The instructor, after analyzing the allegations made by the appellant regarding the initiation agreement of the sanctioning procedure, considered it unnecessary to open a period for evidence. Therefore, the proposal for resolution was carried out and notified, against which the appellant made the corresponding allegations.

V

Response to the allegation regarding the disproportion of the imposed sanction

In relation to the statements made by the appellant concerning the disproportion of the imposed sanction, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in Legal Basis VI of the

resolution now being appealed.

Thus, regarding the allegation that the circumstance of intent or negligence does not exist because the appellant emitted the audio exactly as it was disseminated by the court itself, such that if there were negligence, it would lie with said court, the aforementioned legal basis indicates that what has been analyzed in the sanctioning procedure is the dissemination of the victim's voice without distortion, as the media are responsible for the treatment that habitually distorts the voice in order to prevent the speaker from being recognized.

On the other hand, concerning the allegation regarding the mitigating circumstances that have not been taken into account and that the appellant believes are applicable to the present case, the mentioned Legal Basis VI of the appealed resolution indicates:

- Regarding the absence of prior infringement records, that "the Judgment of the National Court, dated May 5, 2021, rec. 1437/2020, provides us with the response: 'On the other hand, it should be appreciated as a mitigating factor the non-commission of a prior infringement. Well, Article 83.2 of the GDPR establishes that, among other things, the circumstance 'e) any previous infringement committed by the responsible party or the data processor' must be taken into account for the imposition of the administrative fine. This is an aggravating circumstance; the fact that the prerequisite for its application does not exist means that it cannot be taken into consideration, but it does not imply or allow, as the plaintiff intends, its application as a mitigating factor.'"

- Regarding the degree of cooperation with the AEPD, that "it cannot be considered a mitigating factor since the withdrawal orders issued by it are mandatory in accordance with the provisions of Article 69 of the LOPDGDD. The consideration of cooperation with the Agency as a mitigating factor, as intended by the appellant, is not applicable."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/14

The appellant is not bound by any of the assumptions under which there may be collaboration, cooperation, or requirement due to a legal mandate, when the actions are due and required by law, as in the case at hand."

- Regarding adherence to the Digital Pact for the protection of individuals, "voice is a personal data that identifies or makes a person uniquely identifiable, as we pointed out in Legal Basis II, so it cannot be considered a mitigating circumstance that the respondent is adhered to the Digital Pact for the protection of individuals since what has occurred is a clear violation of point 1 of the same: 'The signatories of the Charter shall refrain from identifying in any way the victims of assaults, violent acts, or sexual content in their information or from publishing information from which, in general, their identity may be inferred when it concerns individuals without public relevance. All this without prejudice to the fact that non-public individuals may be involved in newsworthy events, in which case the news coverage will be the necessary one to adequately comply with the right to information, taking into account the peculiarities of each case.'"

VI

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by CONECTA5 TELECINCO, S.A.U. against the resolution of this Spanish Agency for Data Protection issued on December 27, 2022, in file RR/00065/2023.

SECOND: TO NOTIFY this resolution to CONECTA5 TELECINCO, S.A.U.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary

payment period indicated in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by depositing it in the restricted account no. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of article 90.3 a) LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

180-111122

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es